



CHAPTER 33

An Act to make provision with respect to contributions in connection with housing accommodation.

[28th March, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Exchequer subsidies

1.—(1) The provisions of this Act shall have effect for the purpose of providing exchequer subsidies in respect of, and in certain circumstances in respect of the site of, any new dwelling which is—

Introduction of
new housing
subsidies.

- (a) provided by a local authority in the exercise of their powers to provide housing accommodation or by a development corporation otherwise than in pursuance of authorised arrangements, being a dwelling the tender or estimate for the erection of which was accepted by a formal resolution of the authority or corporation passed on or after the third day of November, nineteen hundred and fifty-five; or
- (b) provided by a development corporation or housing association in pursuance of authorised arrangements with a local authority made on or after the said third day of November,

and which is approved for the purposes of this Act by the Minister:

Provided that—

- (i) a formal resolution passed as aforesaid accepting a tender or estimate which was submitted to the Minister

for approval before the said third day of November shall be deemed for the purposes of this subsection to have been passed before that day ; and

- (ii) where, on approving any authorised arrangements made on or after the said third day of November, the Minister is satisfied that the substantial effect of those arrangements had been agreed between the parties before that day, those arrangements shall be deemed for the purposes of this subsection to have been made before that day.

(2) Any exchequer subsidy payable under this Act—

- (a) in respect of, or of the site of, a dwelling such as is mentioned in paragraph (a) of the foregoing subsection shall be paid to the local authority or, as the case may be, to the development corporation ;
- (b) in respect of, or of the site of, a dwelling such as is mentioned in paragraph (b) of that subsection, shall be paid to the local authority, who shall pay to the development corporation or housing association by way of annual grant an amount not less than the exchequer subsidy.

(3) No contribution shall be payable under section one of the Act of 1946, under subsection (2) of section eight of the New Towns Act, 1946, or under subsection (3) of section ninety-four of the principal Act in respect of any dwelling qualified to be considered for approval by the Minister under subsection (1) of this section.

Power to
abolish or
reduce
subsidies.

2.—(1) The Minister may, at any time after the thirty-first day of March, nineteen hundred and fifty-six, and thereafter from time to time, by order direct that, in respect of, or of the site of, dwellings of any description specified in the order, or such dwellings in any area so specified, exchequer subsidies under this Act—

- (a) shall cease to be payable ; or
- (b) shall be reduced to such amount as may be specified in the order ; or
- (c) shall be payable for such reduced number of years as may be so specified.

(2) Any such order shall be expressed to apply to, or to the site of, any dwelling of the description specified in the order—

- (a) the tender or estimate for the erection of which is accepted—
 - (i) by a formal resolution of a local authority ; or
 - (ii) in the case of a dwelling provided by a development corporation otherwise than in pursuance of authorised arrangements, by a formal resolution of the corporation,

passed on or after a date specified in the order ; or

- (b) which is provided by a development corporation or housing association in pursuance of authorised arrangements made on or after that date.

(3) An order under this section shall be made by statutory instrument and—

- (a) shall not be made unless a draft thereof has been approved by a resolution of the Commons House of Parliament ; and

- (b) shall not specify a date under the last foregoing subsection earlier than the date of the laying of the draft ;

and before laying such a draft the Minister shall consult with such associations of local authorities as appear to him to be concerned and with any local authority with whom consultation appears to him to be desirable.

(4) No order shall be made after the commencement of this Act under section sixteen of the Act of 1946.

3.—(1) In respect of each approved dwelling which satisfies one of the conditions specified in subsection (3) of this section the Minister shall pay for each of the sixty years following the completion of the dwelling an annual exchequer subsidy of— Rate of subsidies for dwellings.

- (a) in the case of a dwelling other than a flat in a block of flats of four or more storeys—

(i) being a dwelling such as is mentioned in paragraph (a) or (b) of the said subsection (3), twenty-two pounds one shilling ;

(ii) being a dwelling such as is mentioned in any of paragraphs (c) to (f) of the said subsection (3), twenty-four pounds ;

- (b) in the case of a flat in a block of flats of four storeys, thirty-two pounds ;

- (c) in the case of a flat in a block of flats of five storeys, thirty-eight pounds ;

- (d) in the case of a flat in a block of flats of six or more storeys, fifty pounds, increased by one pound fifteen shillings for each storey by which the block exceeds six storeys.

(2) In respect of each approved dwelling which does not satisfy any of the conditions specified in the next following subsection the Minister shall pay for each of the sixty years following the completion of the dwelling an annual exchequer subsidy of—

- (a) in the case of a dwelling other than a flat in a block of flats of four or more storeys, ten pounds ;

- (b) in the case of a flat in a block of flats of four storeys, twenty pounds ;
- (c) in the case of a flat in a block of flats of five storeys, twenty-six pounds ;
- (d) in the case of a flat in a block of flats of six or more storeys, thirty-eight pounds, increased by one pound fifteen shillings for each storey by which the block exceeds six storeys.

(3) The conditions referred to in the two foregoing subsections are that the dwelling was—

- (a) provided by a local authority for the purposes of slum clearance or re-development ; or
- (b) provided by a local authority for the purposes of re-housing persons coming from such camps or other unsatisfactory temporary housing accommodation as the Minister may designate for the purposes of this paragraph ; or
- (c) provided by a local authority in the course of a scheme of town development as defined by the Town Development Act, 1952, carried out with the approval of the Minister wholly or partly in the area of that authority ; or
- (d) provided by a local authority for the accommodation of persons coming from outside the area of that authority in order to meet the urgent needs of industry, where the dwelling has been so provided in accordance with arrangements approved by the Minister as being desirable by reason of special circumstances and so long as any conditions laid down by the Minister on the giving of his approval are complied with ; or
- (e) provided by the local authority of a congested or over-populated area in some other area as part of a scheme of comprehensive development the general character of which is, in the opinion of the Minister, similar to development for the purposes of a new town under the New Towns Act, 1946 ; or
- (f) provided by a development corporation otherwise than in pursuance of authorised arrangements.

(4) In the case of a dwelling provided in pursuance of authorised arrangements with a local authority, the Minister may direct that this section shall apply to that dwelling as if it were a dwelling mentioned in such, if any, of paragraphs (a), (b), (d) or (e) of the last foregoing subsection as the Minister, having regard to the intentions of the local authority with respect to the use of that dwelling when entering into the arrangements, may determine to be appropriate.

4.—(1) If the Minister thinks fit so to determine in the case of any dwelling provided by, or in pursuance of authorised arrangements with, the council of a county district by way of housing accommodation required for the agricultural population of that district (being a dwelling in respect of which a contribution is payable under paragraph (a) of subsection (2) of the last foregoing section), the amount of the annual exchequer subsidy payable in respect of that dwelling under this Act, as determined apart from the provisions of this subsection and the next following section, shall be increased by nine pounds.

Additional subsidies for agricultural dwellings etc.

(2) Where the annual exchequer subsidy in respect of any dwelling is increased under the foregoing subsection, section eight of the Act of 1946 (which requires the payment of contributions by a county council in respect of certain dwellings) shall have effect, as modified by the First Schedule to this Act, for the purpose of requiring contributions in respect of that dwelling by the council of the county in which it is situated.

(3) The following provisions, that is to say—

(a) section six of the Act of 1946 ; and

(b) subsection (1) of section thirty-nine of the Housing Act, 1949,

(which provide for increases in the annual exchequer contributions payable under the Act of 1946 by reason of certain special expenditure) shall have effect, as modified by the said First Schedule, for the purpose of increasing annual exchequer subsidies under this Act.

5.—(1) Where the Minister is of opinion, on an application made to him by a local authority—

(a) that there is urgent need for more housing accommodation which will only be met if that accommodation is provided by that authority ; and

(b) that unless the Minister exercises his powers under this section that housing accommodation could not be provided without imposing an unreasonably heavy rate burden or necessitating the charging of unreasonably high rents for that and other housing accommodation provided by the authority,

Power to increase subsidies in certain circumstances.

the Minister may direct that, in the case of any approved dwelling provided by that authority (not being a dwelling such as is mentioned in paragraph (c), (d) or (e) of subsection (3) of section three of this Act), the amount of the annual exchequer subsidy otherwise payable under this Act, if less than the amount hereinafter specified, shall be increased to such sum as may be specified in the direction not exceeding—

(i) in the case of a dwelling other than a flat in a block of flats of four or more storeys, thirty pounds ; or

(ii) in the case of such a flat, forty pounds.

(2) In exercising his powers under this section the Minister shall have regard to any conditions which may be laid down by the Treasury.

Subsidies for
expensive sites.

6. If any building consisting of or comprising an approved dwelling is provided on a site the cost of which as developed (ascertained in accordance with the provisions of the Second Schedule to this Act and expressed as a cost per acre) exceeds four thousand pounds, then in respect of that site or the portion thereof on which that building is erected the Minister shall pay for each of the sixty years following the completion of the building an annual exchequer subsidy at the rate of sixty pounds per acre, increased at the rate of thirty-four pounds per acre for every thousand pounds or part of a thousand pounds by which the said cost exceeds five thousand pounds ;

Provided that—

(a) if none of the buildings provided or to be provided on the site is a block of flats of four or more storeys, any amount by which the said cost exceeds ten thousand pounds shall be disregarded ;

(b) if any building or part of a building erected or to be erected on the site is designed for use otherwise than as housing accommodation, then, for the purpose of calculating any exchequer subsidy under this section in respect of that site or any portion thereof, the said cost shall be deemed to be reduced by so much thereof as, in the opinion of the Minister, may fairly be apportioned to that building or part of a building.

Subsidies for
privately pro-
vided agricul-
tural dwellings.

7. Section three of the Act of 1938, as amended by section thirteen of the Act of 1946 (which provides for the making of annual contributions for privately provided agricultural dwellings) shall, in relation to a new dwelling completed in pursuance of arrangements made under that section after the commencement of this Act, have effect as if in subsection (1) thereof for the words " not exceeding fifteen pounds " there were substituted the words " not exceeding ten pounds ".

Provisions relating to other contributions

Termination
of duty
to make
rate fund
contributions.

8.—(1) With effect from the first day of April, nineteen hundred and fifty-six, a local authority shall be relieved of the obligation to make contributions out of the general rate fund—

(a) by way of the contributions mentioned in paragraphs 1 to 7 of the Eighth Schedule to the principal Act ;

(b) under section six of the Act of 1938 ;

- (c) under section five of the Act of 1946 ;
- (d) under section eighteen of the Housing Act, 1949 ;
- (e) under section eight of the Housing Repairs and Rents Act, 1954 ; and

(f) under subsection (1) of section twelve of the Requisitioned Houses and Housing (Amendment) Act, 1955, but may in any financial year carry to the credit of the housing revenue account, in addition to the amounts required by section one hundred and twenty-nine of the principal Act, such further amounts, if any, as they may think fit.

(2) Where arrangements are in force immediately before the said first day of April between a local authority and some other local authority, a development corporation or a housing association providing for annual payments in respect of a dwelling by the authority to the other party to the arrangements of an amount determined by reference to the amount of any contributions mentioned in the foregoing subsection or any corresponding contributions provided for by the enactments for the time being in force with respect to the provision of housing accommodation, then, without prejudice to any variation of those arrangements by the parties thereto—

- (a) in the case of a dwelling in respect of which payments under the arrangements are on the said first day of April already being made, the arrangements shall be deemed to provide for payments thereunder of the amount being paid before that day ;
- (b) in the case of any other dwelling in respect of which such payments become payable, the amount of those payments shall be an amount equal to one-third of the annual exchequer subsidy payable in respect of the dwelling under this Act, or eight pounds, whichever is the less.

(3) For the purposes of the application of this Act to London—

- (a) the reference in subsection (1) of this section to the general rate fund shall be construed, in relation to the London County Council, as a reference to the county fund ;
- (b) subsection (2) of this section shall not apply to any arrangements made between the London County Council and the council of a metropolitan borough or the Common Council of the City of London under subsection (1) of section one hundred and eighty-one of the principal Act ; and
- (c) so much of any contribution paid by the London County Council into the housing revenue account under paragraph 8 of the Eighth Schedule to the principal Act

as may fairly be regarded as attributable to the cessation under subsection (1) of this section of any contributions mentioned in paragraphs 1 to 3 of that Schedule shall be defrayed as expenses incurred by that council for special county purposes.

**Power of
Minister to
recover certain
contributions.**

9.—(1) The provisions of this section shall apply where the Minister is satisfied that a dwelling provided in the area of any local authority—

(a) by a development corporation ; or

(b) by the local authority of that area in the course of town development as defined by the Town Development Act, 1952,

has been so provided for the purpose of relieving congestion or over-population in the areas of other local authorities (in this section referred to as “exporting areas”) and that, on or after the first day of April, nineteen hundred and fifty-six, the dwelling was first used after its completion to accommodate a person who, in the opinion of the Minister, came there from an exporting area recognised as such by the Minister for the purposes of this section.

(2) If in respect of any such dwelling the Minister—

(a) in the exercise of his powers under subsection (2) of section twelve of the New Towns Act, 1946, makes a grant to the development corporation by way of annual payments ; or

(b) in the exercise of his powers under paragraph (a) of subsection (2) of section two of the said Act of 1952, makes annual contributions to the local authority of the area in which the dwelling is situated,

then, in each of the ten years following the completion of the dwelling, the Minister shall be entitled to recover from such local authority as he may determine to be the local authority of the exporting area from which the person aforesaid came, or, where the Minister is satisfied that that person was the tenant of a dwelling in that area belonging to another local authority, from that other local authority—

(i) a sum equal to one half of any such payment or contribution made in respect of that dwelling in that year ; or

(ii) the sum of four pounds,

whichever is the less.

General provisions

10.—(1) There shall be paid out of moneys provided by Expenses. Parliament—

- (a) all sums payable by the Minister under this Act ; and
- (b) any increase attributable to the provisions of this Act in the sums payable under any other enactment out of moneys so provided.

(2) Any sums received by the Minister under this Act shall be paid into the Exchequer.

11.—(1) For the purposes of paragraph (a) of subsection (3) of Interpretation. section three of this Act, a dwelling shall be deemed to be provided by a local authority for the purposes of slum clearance or re-development if, and only if, provision of the dwelling by the authority is rendered necessary—

(a) by displacements of persons occurring—

(i) in connection with any action taken by the authority under the principal Act for the demolition of insanitary houses or for dealing with clearance areas, or under the principal Act, under section three of the Housing Act, 1949, or under section ten of the Local Government (Miscellaneous Provisions) Act, 1953, for closing the whole or part of any building ;
or

(ii) in connection with the implementation of an undertaking for the demolition of an insanitary house given by the owner thereof in lieu of the taking by the authority of such action as aforesaid ;
or

(iii) in connection with the demolition of an insanitary house belonging to the authority ; or

(b) by displacements occurring in the carrying out of re-development in accordance with a re-development plan within the meaning of the principal Act from houses which are unfit for human habitation and not capable at a reasonable expense of being rendered so fit, or which are so arranged as to be congested, or, where the re-development plan was submitted to the Minister before the third day of November, nineteen hundred and fifty-five, from any house in the re-development area.

(2) In this Act, unless the context otherwise requires, the following expressions have the following meanings respectively, that is to say—

“ the Act of 1938 ” means the Housing (Financial Provisions) Act, 1938 ;

- “ the Act of 1946 ” means the Housing (Financial and Miscellaneous Provisions) Act, 1946 ;
- “ agricultural population ” has the meaning assigned by subsection (2) of section one hundred and fifteen of the principal Act ;
- “ approved dwelling ” means a dwelling approved by the Minister under subsection (1) of section one of this Act ;
- “ authorised arrangements ” means arrangements between a local authority and a housing association or development corporation under section ninety-four of the principal Act for the purpose of enabling the association or corporation to provide housing accommodation ;
- “ block of flats ” of a given number of storeys means a building containing flats which consists of that number of storeys exclusive of any storey constructed for use for purposes other than those of a dwelling ; and for the purposes of this definition a building which consists of a different number of storeys in different parts thereof shall be treated as if each of those parts were a separate building, any question as to the division of any building into such parts, or as to the number of storeys of which any such part consists, or as to the number of flats contained in any such part, being determined by the Minister ;
- “ development corporation ” means a development corporation established under the New Towns Act, 1946 ;
- “ dwelling ” means a building or part of a building occupied or intended to be occupied as a separate dwelling, together with any yard, garden, outhouses and appurtenances belonging to or usually enjoyed with that building or part ; so, however, that a building or part which, in the opinion of the Minister, is designed for permanent use as a single dwelling shall be treated as a single dwelling for the purposes of this Act notwithstanding that it is temporarily divided into two or more parts which are occupied or intended to be occupied as separate dwellings ;
- “ flat ” means a separate and self-contained set of premises, whether or not on the same floor, constructed for use for the purposes of a dwelling and forming part of a building from some other part of which it is divided horizontally ;
- “ housing association ” has the same meaning as in the principal Act ;

“local authority” means any authority who are a local authority for the purposes of any provision of the Housing Acts, 1936 to 1952 ;

“the Minister” means the Minister of Housing and Local Government ;

“the principal Act” means the Housing Act, 1936.

(3) Save where the context otherwise requires, references in this Act to any enactment shall be construed as references to that enactment as amended by or under any other enactment, including any enactment contained in this Act.

12.—(1) This Act may be cited as the Housing Subsidies Act, 1956. Citation,
adaptations,
repeals and
extent.

(2) This Act and the Housing Acts, 1936 to 1952, may be cited together as the Housing Acts, 1936 to 1956.

(3) The enactments specified in the First Schedule to this Act shall have effect subject to the modifications and adaptations respectively specified in that Schedule, being modifications and adaptations consequential on the other provisions of this Act.

(4) The enactments mentioned in Parts I and II of the Third Schedule to this Act are hereby repealed to the extent specified in the third column of those Parts respectively—

(a) in the case of the enactments mentioned in the said Part I, with effect from the first day of April, nineteen hundred and fifty-six ; and

(b) in the case of the enactments mentioned in the said Part II, with effect from the commencement of this Act ;

and the provisions of the Housing (Review of Contributions) Order, 1954, specified in Part III of the said Third Schedule are hereby revoked with effect from the said first day of April :

Provided that the repeal by this subsection of section seven of the Act of 1946 shall not affect any increase granted under that section before the said first day of April in the amount of any contribution payable by the Minister.

(5) For the purposes of section twenty-two of the Act of 1946 (which confers power to make orders with respect to the provision of housing accommodation by the council of the Isles of Scilly and with respect to the payment of exchequer subsidies in respect of dwellings provided by that council), an order under that section revoking or varying a previous order thereunder may be made by the Minister notwithstanding that the said council has not applied for such an order to be made.

(6) This Act shall not extend to Scotland or to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Sections 4, 12

MODIFICATIONS AND ADAPTATIONS IN OTHER ACTS

The Housing Act, 1936

(26 Geo. 5. and 1 Edw. 8. c. 51)

1. The expression "the Housing Acts" shall, unless the context otherwise requires, be construed as including this Act.

2. The expression "Exchequer contribution" shall include any sum payable by the Minister to a local authority under this Act other than a sum so payable by reason of paragraph (b) of subsection (2) of section one thereof.

3. The following provisions, that is to say—

(a) subsection (2) of section eighty-nine (which relates to agreements by county councils for assisting rural district councils in providing housing accommodation);

(b) subsection (3) of section one hundred and sixty-nine (which relates to the transfer of the powers of rural district councils to county councils); and

(c) subsection (2) of section one hundred and seventy-two (which relates to the transfer to county councils of the powers of the councils of county districts other than rural districts),

shall have effect as if the references therein to section one hundred and five of the principal Act included references to any of the provisions of this Act providing for the making of payments by the Minister to local authorities; and subsection (3) of the said section eighty-nine shall have effect as if the reference to contributions under the said section one hundred and five included references to exchequer subsidies by virtue of paragraph (a) of subsection (3) of section three of this Act.

4. The proviso to subsection (3) and subsection (4) of section ninety-four (which relate to the reduction, suspension or discontinuance of contributions under the said subsection (3) in respect of a dwelling provided by a housing association or development corporation in pursuance of authorised arrangements) shall have effect as if any reference therein to a contribution payable under the said subsection (3) included a reference to any exchequer subsidy payable under this Act in respect of such a dwelling.

The Housing (Financial and Miscellaneous Provisions) Act, 1946

(9 & 10 Geo. 6. c. 48)

5. Section six (which provides for an increase of such amount not exceeding two pounds as the Minister may determine in the amount of any annual exchequer contribution payable in respect of a dwelling under the Act of 1946 in certain cases where the cost of providing the dwelling is substantially enhanced by expenses attributable to the

acquisition of rights of support, or otherwise attributable to measures taken by the authority for securing protection against the consequences of a subsidence of the site) shall have effect—

1ST SCH.
—cont.

- (a) as if in paragraph (a) of that section the references to the standard amount of the annual exchequer contribution and to that standard amount as ascertained in accordance with the provisions of the Act of 1946 included references respectively to the amount of the annual exchequer subsidy payable under this Act and to that amount as determined apart from the provisions of paragraph (a) of subsection (3) of section four and section five of this Act; and
- (b) in relation to a house provided by a housing association or development corporation in pursuance of authorised arrangements, as if any reference in the said section six to a local authority were a reference to the housing association or development corporation.

6. Section eight (which provides for the payment to the council of a county district in respect of certain dwellings provided by them for the agricultural population of their district of annual contributions of two pounds ten shillings by the council of the county in which that district is situated) shall have effect as if in subsection (1) thereof the reference to annual exchequer contributions of the special standard amount, or of that amount as increased in accordance with the provisions of the Act of 1946, included a reference to annual exchequer subsidies under this Act which are increased under subsection (1) of section four of this Act:

Provided that an order by the Minister under section two of this Act may direct that any contribution by a county council by virtue of this paragraph shall be reduced to such amount as may be specified in the order.

7. Section fourteen (which relates to the effect on certain contributions of a dwelling ceasing to be available as such) shall have effect as if paragraph (b) of subsection (2) of section one of this Act were one of the provisions specified in the Second Schedule to the Act of 1946.

8. Subsection (1) of section fifteen (which relates to the vesting in a local authority of a house provided by a housing association under authorised arrangements) shall have effect as if any reference to subsection (3) of section ninety-four of the principal Act included a reference to this Act.

9. Subsections (1) and (3) of section nineteen (which relate to the duty of local authorities to reserve dwellings for the agricultural population and to the circumstances in which county council contributions under section eight of the Act of 1946 shall not be payable) shall have effect as if the expression "annual exchequer contributions to which this section applies" in the said subsection (1) included annual exchequer subsidies under this Act which are increased under subsection (1) of section four of this Act.

1ST SCH.
—cont.*The New Towns Act, 1946*

(9 & 10 Geo. 6. c. 68)

10. Subsection (3) of section eight (which relates to the transfer to a local authority of a house provided by a development corporation) shall have effect as if the reference therein to an annual exchequer contribution under section ninety-four of the principal Act or under subsection (2) of the said section eight included a reference to any annual exchequer subsidy payable under this Act.

The Housing Act, 1949

(12, 13 & 14 Geo. 6. c. 60)

11. In section thirty-two (which provides that an order under section sixteen of the Act of 1946 may provide for the reduction of the amount of certain exchequer contributions under the Housing Act, 1949) for the reference to the said section sixteen there shall be substituted a reference to section two of this Act.

12. Subsection (1) of section thirty-nine (which provides for an increase of such sum not exceeding five pounds as the Minister may determine in the amount of any annual exchequer contribution payable in respect of a dwelling under the Act of 1946 in certain cases where the cost of providing the dwelling is substantially enhanced by expenses attributable to measures taken to preserve the character of the surroundings) shall have effect—

- (a) as if references in the said subsection (1) to an annual exchequer contribution under the Act of 1946, to the standard amount of that contribution, and to that standard amount as ascertained in accordance with the Act of 1946 and Part III of the Housing Act, 1949, included references respectively to an annual exchequer subsidy under this Act, to the amount of that annual exchequer subsidy, and to that amount as determined apart from the provisions of paragraph (b) of subsection (3) of section four and section five of this Act; and
- (b) in relation to a house provided by a housing association or development corporation in pursuance of authorised arrangements, as if any reference in the said subsection (1) to a local authority were a reference to the housing association or development corporation.

The Town Development Act, 1952

(15 & 16 Geo. 6. and 1 Eliz. 2. c. 54)

13. The expression "house", in a context importing a reference to any annual exchequer subsidy in respect thereof under this Act, shall be construed as having the meaning assigned by subsection (2) of section eleven of this Act to the expression "dwelling".

14. For paragraph (a) of subsection (2) of section two (which empowers the Minister to undertake to make contributions towards annual rate fund contributions under the Act of 1946 in respect of dwellings provided in the course of town development) there shall,

for the purposes of any undertaking given on or after the first day of April, nineteen hundred and fifty-six, be substituted the following paragraph, that is to say—

1ST SCH.
—cont.

“(a) expenses of providing houses in the course of the development for persons coming from the area of some other local authority, so, however, that the Minister’s contribution for any one year in respect of any one such house shall not exceed eight pounds;”.

15. In paragraph (c) of subsection (2) of section three, in paragraph (f) of subsection (1) of section eight, and in subsection (1) of section fourteen (which relate respectively to the withholding or postponement of, the assignment of the right to receive, and the transfer or re-transfer of land comprising dwellings in respect of which there are payable, annual exchequer contributions within the meaning of the Act of 1946) references to the said annual exchequer contributions shall be construed as including references to annual exchequer subsidies under this Act.

SECOND SCHEDULE

Section 6.

PROVISIONS FOR ASCERTAINING THE VALUE OF CERTAIN SITES

1. For the purposes of section six of this Act, the cost of a site as developed shall be taken to be—

- (a) in the case of a site purchased by a local authority under any enactment relating to housing, the expenditure incurred by the local authority in purchasing the site; and
- (b) in any other case the value of the site as certified by the Minister,

plus, in either case, a sum representing—

- (i) any such expenses as in the opinion of the Minister have been or will be properly incurred for making the site suitable for the purpose of providing the buildings erected or to be erected thereon, being expenses incurred or to be incurred by the local authority, development corporation or housing association providing those buildings for the construction or widening of streets, the construction of sewers, or the execution of any special works rendered necessary by the physical characteristics of the land; and
- (ii) any such expenses which have been, or in the opinion of the Minister will be, incurred in respect of other matters as the Minister, with the consent of the Treasury, may determine to be expenses properly forming part of the cost of making the site suitable for the said purpose.

2. In determining for the purposes of the foregoing paragraph the amount of any such expenses as are therein mentioned, the Minister shall have regard to any estimate of those expenses submitted to him by the local authority, development corporation or housing association, as the case may be; and for the purposes of sub-paragraph (b) of that paragraph, the value certified in the case of a site in relation to which any such expenses have been incurred shall be the value of that site in the condition in which it would be if those expenses had not been incurred.

2ND SCH.
—cont.

3. For the purposes of the said section six and of this Schedule, any question—

- (a) as to what constitutes a separate site; or
- (b) as to the portion of such a site on which any building has been erected; or
- (c) as to how much of any expenditure incurred by a local authority in purchasing land is to be attributed to any site forming part only of that land,

shall be determined by the Minister.

4. For the purposes of any determination under sub-paragraph (a) or (b) of the last foregoing paragraph—

- (a) where two buildings are contiguous to each other, or are separated from each other by a street only, the two buildings shall, if the Minister thinks proper, be deemed to be on the same site; and
- (b) where any land has been purchased in connection with the provision of a building and has been or is to be used for the purpose of a new street to which the building is or will be contiguous, that land shall be deemed to form part of the site of the building.

5. For the purposes of the last foregoing paragraph—

- (a) the expression “building” includes any land appertaining to a building and any land appropriated for the purposes of a building which has not been erected; and
- (b) the expression “street” includes any court, alley, passage or square, whether a thoroughfare or not, and includes a public highway.

Section 12.

THIRD SCHEDULE

REPEALS AND REVOCATIONS

PART I

Repeals consequential on s. 8 of this Act

Session and Chapter	Short Title	Extent of Repeal
26 Geo. 5. and 1 Edw. 8. c. 51.	The Housing Act, 1936 ...	In section eighty-six the words from “or of” to “payable by the authority”; section one hundred and fourteen; paragraphs 1 to 7 and 9 of the Eighth Schedule; and paragraphs 2 and 3 of the Tenth Schedule.
1 & 2 Geo. 6. c. 16.	The Housing (Financial Provisions) Act, 1938.	Section six.
2 & 3 Geo. 6. c. 31.	The Civil Defence Act, 1939.	Subsection (1) of section thirty-four from “and” onwards.

3RD SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 48.	The Housing (Financial and Miscellaneous Provisions) Act, 1946.	Section five; section six from "and" onwards; section seven; in subsection (2) of section ten the words "the like annual rate fund contributions"; in subsection (2) of section twenty-two, the words "and by the said council"; in each of Parts II and III of the First Schedule, the third column of the Table; and paragraph 5 of the Third Schedule.
11 & 12 Geo. 6. c. 26.	The Local Government Act, 1948.	Subsection (3) of section one hundred and twenty-six from "and any" onwards.
12, 13 & 14 Geo. 6. c. 60.	The Housing Act, 1949 ...	Paragraph (a) of subsection (2) of section fourteen; section eighteen; in subsection (1) of section thirty-seven the words "and the normal amount of the annual rate fund contribution for the flat for those purposes", the word "amounts" where first occurring, the words "and five" and the word "respectively"; in subsection (1) of section thirty-eight the words from "and (b)" to the end of paragraph (b); subsection (1) of section thirty-nine from "and (b)" onwards; and paragraphs 3 and 14 of the Second Schedule.
15 & 16 Geo. 6. and 1 Eliz. 2. c. 53.	The Housing Act, 1952 ...	In subsection (1) of section one, paragraph (c) and paragraph (d) from the beginning to the word "and"; and in the Schedule the third column of each of the Tables.
15 & 16 Geo. 6. and 1 Eliz. 2. c. 54.	The Town Development Act, 1952.	Subsection (2) of section fourteen from "and shall" onwards.
2 & 3 Eliz. 2. c. 53.	The Housing Repairs and Rents Act, 1954.	Section eight.
3 & 4 Eliz. 2. c. 24.	The Requisitioned Houses and Housing (Amendment) Act, 1955.	Subsections (1), (2) and (4) of section twelve.

3RD SCH.
—cont.

PART II
Other repeals

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 48.	The Housing (Financial and Miscellaneous Provisions) Act, 1946.	In subsection (4) of section twenty-two, the words " on the application of the said council ".
11 & 12 Geo. 6. c. 29.	The National Assistance Act, 1948.	Subsection (7) of section twenty-eight.

PART III

Revocations in the Housing (Review of Contributions) Order, 1954 (S.I. 1954 No. 1407) consequential on s. 8 of this Act

1. In paragraph (1) of article 3, the words " and the normal amounts of the annual rate fund contribution ".

2. Sub-paragraph (c) of paragraph (2) of the said article 3.

3. In sub-paragraph (d) of the said paragraph (2), the words " and under section 5 of the said Act the normal amount of the annual rate fund contribution " and the third column of each of the Tables set out thereunder.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Housing Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 51.
Housing (Financial Provisions) Act, 1938 ...	1 & 2 Geo. 6. c. 16.
Housing (Financial and Miscellaneous Provisions) Act, 1946	9 & 10 Geo. 6. c. 48.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Housing Act, 1949	12, 13 & 14 Geo. 6. c. 60.
Town Development Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 54.
Local Government (Miscellaneous Provisions) Act, 1953	1 & 2 Eliz. 2. c. 26.
Housing Repairs and Rents Act, 1954	2 & 3 Eliz. 2. c. 53.
Requisitioned Houses and Housing (Amendment) Act, 1955	3 & 4 Eliz. 2. c. 24.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 9d. net

(37177)

PRINTED IN GREAT BRITAIN

Criminal Justice Administration Act, 1956

4 & 5 ELIZ. 2 CH. 34

ARRANGEMENT OF SECTIONS

PART I

NEW ARRANGEMENTS AS TO ADMINISTRATION OF JUSTICE IN LANCASHIRE

Section

1. Establishment of new courts at Liverpool and Manchester for criminal trials.
2. Effect of establishment of Crown Courts.
3. Additional jurisdiction of Crown Courts as courts of quarter sessions for Liverpool and Manchester.
4. Status, salary and pension of recorders of Liverpool and Manchester.
5. Officers of Crown Courts.
6. Divisions of Lancashire for assizes.
7. Transfer to Lancashire of the part of Stockport now in Cheshire.
8. Provision of assize courts, etc.
9. Sharing of costs of assize courts and jury service among local authorities.
10. Expenses other than expenses of provision of assize courts, etc.
11. Supplementary.

PART II

MISCELLANEOUS AMENDMENTS

12. Extension of Administration of Justice (Miscellaneous Provisions) Act, 1938, s. 2.
13. Retirement or removal of recorder and others.
14. Remuneration of temporary recorders.
15. Additional courts of quarter sessions in boroughs.
16. Transfer to the Lord Chancellor or the Chancellor of the Duchy of Lancaster of certain functions of the Secretary of State.

Section

17. Exemption of boroughs with separate commissions of the peace from county contributions for magistrates' courts, etc.
18. Constitution for purposes of appeals of court of quarter sessions for London.
19. Transfer of power to make rules of court under Criminal Appeal Act, 1907, and rules under Indictments Act, 1915.
20. Transcript of shorthand notes of trial on indictment.

PART III

SUPPLEMENTARY

21. Short title, extent and repeal.

SCHEDULES:

First Schedule—Transitional provisions in connection with Part I.

Second Schedule—Appointment etc. of deputy of stipendiary magistrate.

Third Schedule—Repeals.